

CS22 - Separate CHIP General Eligibility - Retroactive Eligibility for Children and/or Pregnant Women



Statute: Section 2102(b)(1)(B)(vi) of the Social Security Act (SSA)

Regulation: 42 CFR 457.340(g)

INTRODUCTION

This state plan page (fillable PDF) applies to states with separate child health assistance programs.

In state plan page CS22, states indicate if they elect the option to provide retroactive eligibility for children and/or pregnant women and, if so, provide information indicating when this retroactive eligibility period begins. This state plan page is required only of states which provide retroactive eligibility for children and/or pregnant women. States which do not provide retroactive eligibility in their separate CHIP do not need to submit this page.

BACKGROUND

States with separate child health assistance programs may elect to provide retroactive eligibility in CHIP. Under retroactive eligibility, states may use title XXI funds to pay costs of CHIP coverage for a period prior to the application date, for children and/or pregnant women applying for CHIP, pending a final determination of eligibility.

Key Limitation: Retroactive coverage cannot begin earlier than **two months prior to the month of application**, as specified in Section 2102(b)(1)(B)(vi) of the SSA.

The election of retroactive coverage is **optional** in CHIP. If the state elects this option, this state plan page is **required**. States which do not provide retroactive eligibility for children and/or pregnant women need not submit this page.

TECHNICAL GUIDANCE

PREREQUISITES:

None

STATE PLAN PAGE CONTENT:

This state plan page includes the following sections:

1. Selection and Description of Retroactive Eligibility
2. Selection of Eligible Populations
3. Retroactive Coverage Period Specifications

Selection and Description of Retroactive Eligibility

In this section, states indicate whether they offer retroactive eligibility by selecting the checkbox for the statement:

- **"The state elects to provide retroactive eligibility prior to the effective date of CHIP coverage for one or more of its separate CHIP populations under the CHIP state plan."**

Review Criteria

If the state offers retroactive eligibility, it must select "Yes" to this statement. If this box is not checked, the remaining sections will not be displayed in OneMAC.

Compliance Assurance (Required if Retroactive Eligibility is Elected)

If the state elects to provide retroactive eligibility, it must check the following mandatory assurance:

- **"Consistent with 2102(b)(1)(B)(vi) of the SSA, the state assures that retroactive coverage does not begin any earlier than two months prior to the month of application."**

Review Criteria

This assurance is mandatory if retroactive eligibility is elected. The state plan page cannot be approved without this selection.

Selection of Eligible Populations

States must identify the population(s) for which the state provides retroactive coverage. The state may select one, two, or all three populations from the following options:

Population Option 1: Targeted Low-Income Children (0 to age 19)

Selection:

- **Check this box if providing retroactive coverage to children**

Retroactive Coverage Period - Select ONE:

- The first of the month prior to the month of application (1-month lookback)
- The first of the 2nd month prior to the month of application (2-month lookback)
- Other (requires text description)

If "Other" is selected:

The state must describe the specific subset of the population (e.g., specific age group or circumstance) that receives retroactive coverage, as well as the exact period of retroactive coverage.

Review Criteria

The state must select at least one coverage period option if this population is checked.

- If "Other" is selected, the state must provide a clear, detailed, and complete description that permits the reviewer to determine that the state's policies meet applicable federal statutory, regulatory, and policy requirements.

Population Option 2: Targeted Low-Income Pregnant Women

Selection:

- Check this box if providing retroactive coverage to pregnant women

Retroactive Coverage Period - Select ONE:

- The first of the month prior to the month of application (1-month lookback)
- The first of the 2nd month prior to the month of application (2-month lookback)
- Other (requires text description)

If "Other" is selected:

The state must describe the specific subset of the population (e.g., specific trimester or circumstance) that receives retroactive coverage, as well as the exact period of retroactive coverage.

Review Criteria

The state must select at least one coverage period option if this population is checked.

- If "Other" is selected, the state must provide a clear, detailed, and complete description that permits the reviewer to determine that the state's policies meet applicable federal statutory, regulatory, and policy requirements.

Population Option 3: From-Conception-to-End-of-Pregnancy (FCEP) - "Unborn Child"

Selection:

- Check this box if providing retroactive coverage to unborn children

Retroactive Coverage Period - Select ONE:

- The first of the month prior to the month of application (1-month lookback)
- The first of the 2nd month prior to the month of application (2-month lookback)
- Other (requires text description)

If "Other" is selected:

The state must describe the specific subset of the population (e.g., specific gestational age or circumstance) that receives retroactive coverage, as well as the exact period of retroactive coverage.

Review Criteria

The state must select at least one coverage period option if this population is checked.

- If "Other" is selected, the state must provide a clear, detailed, and complete description that permits the reviewer to determine that the state's policies meet applicable federal statutory, regulatory, and policy requirements.